



KARLCON

BOOKING AGENT TERMS & CONDITIONS

EFFECTIVE JULY 2025 VERSION 1.0

KARLCON CONSULTANCY (PRIVATE) LIMITED | REG. NO. 15017/2023





1. PARTIES & DEFINITIONS

These Terms and Conditions ("Agreement") govern all bookings facilitated by **KARLCON CONSULTANCY (PRIVATE) LIMITED**, a company duly incorporated under the Companies and Other Business Entities Act [Chapter 24:31] of Zimbabwe (Reg. No. 15017/2023), hereinafter referred to as "KARLCON" or "the Agent".

For the purposes of this Agreement:

Client

Any individual or entity who makes a booking enquiry or confirms a reservation through KARLCON Elite Retreats.

Host

The property owner or manager whose listing is featured on the KARLCON Elite Retreats platform (karl-con-elite-retreats.vercel.app).

Booking

A confirmed reservation of a property for a specified check-in and check-out date.

Booking Amount

The total payment collected from the Client for a confirmed Booking.

Service Fee

The commission retained by KARLCON for facilitating the Booking, set at 15% of the Booking Amount unless otherwise agreed in writing.

Host Payout

The Booking Amount less the Service Fee, remitted to the Host after successful check-in.

2. BOOKING PROCESS

2.1 Enquiry & Confirmation

All bookings follow this sequence:

- Client submits a booking enquiry via the platform or WhatsApp, specifying the property, check-in date, check-out date, and number of guests.
- KARLCON verifies availability with the Host within 24 hours.
- Upon Host confirmation, KARLCON issues a Booking Confirmation to the Client via WhatsApp or email, stating the total Booking Amount due.
- The Booking is only confirmed upon receipt of full payment by KARLCON.

△ No reservation is guaranteed until payment is received and a Booking Reference Number is issued.

2.2 Booking Reference

Upon payment, KARLCON shall issue a written Booking Confirmation containing: the property name, address, check-in and check-out dates, number of guests, total amount paid, and the Host contact details (released 48 hours before check-in).

3. PAYMENT TERMS

3.1 Accepted Payment Methods

- USD Cash (in-person or mobile transfer)
- EcoCash (USD Merchant Wallet)
- ZIPIT / Innbucks (USD equivalent)
- Bank Transfer — FBC / CBZ (USD account)

All amounts are quoted and collected in United States Dollars (USD) unless otherwise stated.

3.2 Payment Deadline

Full payment of the Booking Amount must be received within 48 hours of Booking Confirmation being issued. Failure to pay within this window releases the hold on the property and the reservation is cancelled automatically.

3.3 Service Fee

KARLCON retains a Service Fee of 15% of the total Booking Amount. This fee covers platform maintenance, booking management, client communications, and coordination with the Host. The Service Fee is non-refundable once the

Booking is confirmed.

3.4 Host Payout Schedule

The Host Payout (85% of Booking Amount) is disbursed to the Host as follows:

- 50% of Host Payout: within 24 hours of confirmed Client check-in.
- Remaining 50%: within 48 hours after confirmed Client check-out, provided no damage claims are outstanding.

△ KARLCON reserves the right to withhold the final Host Payout instalment pending resolution of any Client dispute or damage claim.



4. CANCELLATION POLICY

4.1 Client Cancellations

Notice Period	Refund to Client	KARLCON Retains
7+ days before check-in	85% of Booking Amount	15% Service Fee
3-6 days before check-in	50% of Booking Amount	50% of Booking Amount
1-2 days before check-in	No refund	100% of Booking Amount
No-show / Same-day	No refund	100% of Booking Amount

4.2 Host Cancellations

If a Host cancels a confirmed Booking:

- The Client receives a full refund of the Booking Amount within 5 business days.
- KARLCON will make reasonable efforts to rebook the Client in an equivalent property.
- KARLCON reserves the right to remove the Host listing from the platform following a confirmed Host cancellation.

4.3 Force Majeure

In events of natural disaster, government-imposed travel restrictions, national emergency, or other circumstances beyond either party's reasonable control ("Force Majeure"), KARLCON may issue a credit voucher valid for 12 months in lieu of a cash refund, at its sole discretion.

5. KARLCON'S OBLIGATIONS

- Verify that each listed property is real, owner-authorised, and accurately represented.
- Collect and safeguard Client payments until disbursement to the Host.
- Issue written Booking Confirmations for all confirmed reservations.
- Provide Host contact details to the Client no later than 48 hours before check-in.
- Facilitate dispute resolution between Client and Host in good faith.
- Maintain records of all transactions for a minimum of 3 years.

6. CLIENT OBLIGATIONS

- Provide accurate guest count, check-in dates, and contact information at time of booking.
- Arrive on the confirmed check-in date or notify KARLCON of any changes as early as possible.
- Treat the property with reasonable care. The Client is liable for any damages beyond normal wear and tear.
- Comply with House Rules communicated by the Host or KARLCON at confirmation.
- Not host events or gatherings beyond the stated guest count without prior written approval.

7. HOST OBLIGATIONS

- Maintain the property in the condition presented at listing, including all advertised amenities.
- Honour all confirmed bookings once KARLCON has issued a Booking Confirmation.

- Provide KARLCON with accurate availability calendars at all times.
- Notify KARLCON of any material changes to the property (renovations, amenity removal, etc.) at least 7 days in advance.
- Not accept direct payment from Clients referred via KARLCON without KARLCON's written consent. Breach of this clause constitutes a material breach and may result in immediate delisting and legal action.



8. LIMITATION OF LIABILITY

KARLCON acts as a Booking Agent and is not the owner, lessor, or operator of any property listed on its platform. Accordingly:

- KARLCON is not liable for any personal injury, property loss, theft, or damage suffered by the Client during a stay.
- KARLCON's maximum liability in any dispute is limited to the Booking Amount paid by the Client for the specific reservation in question.
- KARLCON does not guarantee uninterrupted access to utilities (water, electricity, internet) at any property.

△ Clients are strongly advised to carry travel insurance for high-value bookings.

9. DISPUTE RESOLUTION

In the event of a dispute between a Client and a Host:

- The aggrieved party must notify KARLCON in writing (WhatsApp or email) within 24 hours of check-out.
- KARLCON will investigate and issue a determination within 5 business days.
- KARLCON's determination on refund eligibility is final for disputes under USD 500.
- Disputes above USD 500 may be escalated to the relevant Zimbabwean courts in Harare, with Zimbabwean law applying.

10. PRIVACY & DATA

KARLCON collects Client and Host personal data (name, contact, payment details) solely for the purpose of facilitating bookings. This data will not be shared with third parties without consent, except as required by Zimbabwean law. KARLCON will retain data for 3 years post-booking.

11. AMENDMENTS

KARLCON reserves the right to update these Terms and Conditions at any time. Clients and Hosts will be notified of material changes via WhatsApp or email. Continued use of the KARLCON Elite Retreats platform after notification constitutes acceptance of the updated terms.

12. GOVERNING LAW

This Agreement is governed by the laws of the Republic of Zimbabwe. Any legal proceedings arising from this Agreement shall be conducted in the courts of Harare, Zimbabwe.

By making a payment to KARLCON CONSULTANCY (PRIVATE) LIMITED, the Client confirms they have read, understood, and agreed to these Terms and Conditions.

CLIENT SIGNATURE

Full Name: _____

Date: _____

FOR KARLCON CONSULTANCY (PVT) LTD

Authorised Signatory: _____

Date: _____